

Pooja vs State Of Nct Of Delhi & Ors on 23 September, 2020

Author: Yogesh Khanna

Bench: Yogesh Khanna

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IN THE HIGH COURT OF DELHI AT NEW DELHI
CRL.M.C. 1857/2020
P00JA

Through : Mr.S.K.Gautam
Kumar, Advocates with

versus

STATE OF NCT OF DELHI & ORS.

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Through : Mr.M.S.Oberoi, APP th
ASI Yashpal Singh, P
Delhi.
Mr.Dushyant Choudary
respondents No.2 to

CORAM:

HON'BLE MR. JUSTICE YOGESH KHANNA
ORDER

% 23.09.2020

1. The hearing has been conducted through Video Conferencing. Crl.M.A.No.13139-40/2020
2. Exemption allowed, subject to all just exceptions.
3. The application(s) stand disposed of.
4. This petition is filed for direction to the respondents no.2 to 4 for paying the remaining amount of Rs.2.00 lacs in compliance to the settlement dated 24.10.2019 arrived at Counselling Cell, Patiala House Courts, New Delhi and thereafter to quash the FIR.
5. The present FIR was registered on 12.11.2015 by the petitioner under Section 406/498A/34 IPC at CAW Cell, Nanak Pura, Delhi against the respondents.
6. The marriage between petitioner no.1 and respondent no.2 was dissolved on 27.01.2020 under Section 13 (B-II) of Hindu Marriage Act and there is no other litigation pending between the parties. As per the mutual settlement the total amount of Rs.5.50 lacs is to be paid by respondent no.2 to petitioner no.1 out of which Rs.2.00 lacs is still unpaid.
7. Issue notice. The learned APP for the State and counsel for respondents no.2 to 4 are present and accepts the notice. It is submitted by the learned counsel for respondents no.2 to 4 they are inclined to pay the balance amount of Rs.2.00 lacs and they shall transfer the same to the bank account of

the petitioner within seven days from today.

8. List on 05.10.2020.

YOGESH KHANNA, J.

SEPTEMBER 23, 2020 DU